

1.

CASE #	CASE NAME	HEARING NAME
CVME2402958	GUZMAN VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL DEPOSITION AND PRODUCTION OF DOCUMENTS

Tentative Ruling: Hearing Required

2.

CASE #	CASE NAME	HEARING NAME
CVME2402958	GUZMAN VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL PRODUCTION OF PLAINTIFFS' VEHICLE FOR INSPECTION

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2512904	J. VS CLASSIC COLLISION, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is granted. Case is stayed pending arbitration.

Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC rule 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) The party seeking arbitration must prove the existence of the arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.) The burden then shifts to the opposing party to prove any defense such as unconscionability. (*Id.*)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

Federal and state policy favors arbitration such that “when there is doubt as to the meaning and construction of an agreement for mediation and/or arbitration, that doubt

should be resolved in favor of those processes.” (*Bono v. David* (2007) 147 Cal. App. 4th 1055, 1062.)

The FAA Applies - There is no real dispute as to whether the FAA applies to the AA in this case. The FAA governs arbitration in written contracts involving interstate commerce, and provides that arbitration agreements are valid, irrevocable, and unenforceable unless there are grounds that exist at law or in equity for the revocation of any contract. (9 USC § 2; *Rittmann v. Amazon.com, Inc.* (9th Cir. 2020) 971 F.3d 904, 909.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) **Importantly, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA.** (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) Here, the AA expressly states that it is governed by the FAA. (Dec.Poei ¶ 3, Ex. “L”, p. 2, ¶ 4 [p. 18 of 24.]) Thus, the FAA applies to the AA.

Existence of an Arbitration Agreement - Defendants assert that Plaintiff agreed to arbitrate all of his employment-related disputes. The AA states: “By signing my name below and/or by accepting and/or continuing employment with the Company, I agree to pursue any claims I might have against the Company that currently exist or that may arise in the future exclusively through binding arbitration; similarly, the Company agrees to pursue any claims it might have against me that currently exist or that may arise in the future exclusively through binding arbitration.” (Dec.Poei ¶ 3, Ex. “L” p. 1, ¶ 1 [p. 17 of 24.]) The AA also provides: “I understand that this agreement requires me to pursue all claims I bring against the Company (and any third-party beneficiaries) through binding arbitration and requires that the Company submit any claims it has against me to binding arbitration (except for those claims specifically excluded by this agreement.)” (*Id.* Ex. “L” p. 1, ¶ 2.) The AA includes “any and all claims which arise out of the employment context or any other interaction/relationship we had, have or may have in the future.” (*Ibid.*)

“Any writing must be authenticated before the writing, or secondary evidence of its content, may be received in evidence. (Evidence Code §1401; *People v. Valdez* (2011) 201 Cal.App.4th 1429, 1435.) “Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by other means provided by law.” (Evid. Code § 1400; *People v. Valdez, supra.*)

Here, Plaintiff has electronically signed the AA, which is undisputed. (Dec.Poei ¶ 3, Ex. “L” p. 4 [p. 20 of 24.]) In addition, Robert Jones is the Human Resources Information Systems (HRIS) Manager for Classic, who is responsible for employee processing and onboarding, has access to personnel files and employments, and is the custodian of those records. (Dec.Jones ¶¶ 1-2.) Mr. Jones acknowledges the dates Plaintiff was employed by Classic. (*Id.* ¶¶ 3, 5.) He exchanged emails with Plaintiff to assist him in creating an account and completing the onboarding process. (*Id.* ¶¶ 5-13, Exs. “C” – “I”.) He indicates Plaintiff’s signed AA went into his employee file with Classic. (*Id.* ¶ 13.) Thus, Mr. Jones

has established Plaintiff signed the AA. Plaintiff does not dispute that he signed the AA. Thus, a valid AA exists.

Unconscionability - Plaintiff argues that the AA is both procedurally and substantively unconscionable. It is true that a contract is unenforceable if it is unconscionable. (Civil Code §1670.5.) Under California law, “[i]f the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.” (Civil Code § 1670.5(a); see *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) It should be noted that the FAA limits state unconscionability rules that facially discriminate against arbitration. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1143.)

“[T]he doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (*Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, 910.) Both elements must be present in some degree in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. (*Armendariz, supra*, 24 Cal.4th at 114.) Because unconscionability is a contract defense, the party asserting the defense bears the burden of proof. (*Sanchez, supra*, 61 Cal.4th at 911.)

Plaintiff argues that the AA is procedurally unconscionable. “‘Procedural unconscionability’ concerns the manner in which the contract was negotiated and the parties’ circumstances at that time. It focuses on the factors of oppression or surprise. This element is generally satisfied if the agreement constitutes a contract of adhesion.” (*Id.*, citing *Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1280-1281.) Adhesion contracts are “standardized contracts drafted by a party of superior bargaining power and presented to the weaker party on a take-it-or-leave-it basis”. (*Id.*)

Plaintiff asserts there is procedural unconscionability in the AA because it constitutes a contract of adhesion. He asserts that the AA was presented on a take-it-or-leave it basis as part of the onboarding process, and was a condition of employment. However, this merely raises a low degree of procedural unconscionability. (*Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 113.) Notably, Plaintiff did not purport to negotiate the terms of the AA nor did he refuse to sign the AA based on the fact that it was adhesive or presented as a condition of employment. Plaintiff has established only a low degree of procedural unconscionability.

Plaintiff also addresses substantive unconscionability, which focuses on the terms of the agreement and whether those terms are so unduly harsh or unreasonably one-sided as to “shock the conscience.” (*Marin Storage & Trucking, Inc. v. Benco Contracting & Eng.* (2001) 89 Cal.App.4th 1042, 1055.) It should also be noted that “a sliding scale is invoked whereby the more procedurally oppressive the arbitration clause is, the less evidence of substantive unconscionability is required to warrant the conclusion that the agreements to arbitrate are unenforceable.” (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.)

Plaintiff argues that the AA itself is “extremely ambiguous” because it references the FAA, and procedures of the CAA, which is contradictory. However, these are standard references made in AAs. Plaintiff has not demonstrated how there is any conflict nor how it would render the AA substantively unconscionable. And, Plaintiff cites no authority for this purported ambiguity constituting substantive unconscionability.

Plaintiff also argues that the AA states Plaintiff will have the full benefit of discovery, but Defendants claim Plaintiff is not entitled to full discovery as if he was in a civil forum. Notably, Plaintiff acknowledges that the AA contains language incorporating permissible discovery procedures under the CAA, CCP § 1283.05. Plaintiff asserts that he offered a stipulation containing this language from the AA proposing to allow discovery as expressly set forth in the AA, but that Defendants refused to include the language in the stipulation, which is the reason Plaintiff would not stipulate to arbitration. Defendants clarify that Plaintiff is arguing that Defendants are refusing to comply with their own AA, but in actuality CCP § 1283.05(e) limits discovery in arbitration by requiring leave from the arbitrator to take depositions – “Depositions for discovery shall not be taken unless leave to do so is first granted by the arbitrator or arbitrators.” Defendants also point out that the arbitrator is the gatekeeper in arbitration similar to the judge in superior court. (CCP § 1283.05(b).) Moreover, the discovery rule in arbitration applies to both Plaintiff and Defendants. Thus, Plaintiff has not established any substantive unconscionability.

Based on the foregoing, and considering the sliding scale used for claims of unconscionability, Plaintiff has only established a low degree of procedural unconscionability and no substantive unconscionability. As such, unconscionability has not been sufficiently demonstrated to warrant a defense to arbitration.

Plaintiff also argues that Defendants engaged in misconduct by publicly disclosing his surname and personal information including his social security number so, the motion should be denied. Defendants assert that there was no *intention* to make such a disclosure. Rather, the information was *mistakenly* left unredacted in the motion. And, these inadvertent errors have since been corrected. This is not a proper ground to prevent arbitration, as agreed by the parties.

Finally, Plaintiff does not oppose Defendants’ contention that Defendant, Moreno, is a third-party beneficiary.

4.

CASE #	CASE NAME	HEARING NAME
CVME2514611	SIGEL VS SIGEL	MOTION TO STRIKE DECLARATION OF HEATHER N PHILLIPS, ESQ

Tentative Ruling: Motion is Denied.

Defendant filed a motion to strike the Declaration of Heather N. Phillips, Esq. in support of Plaintiff’s opposition to Defendant’s Motion to Dismiss pursuant to Code of Civil Procedure sections 435 and 436.

On January 21, 2026, Defendant filed a Motion to Dismiss. On March 3, 2026, Plaintiff filed an opposition and Declaration of Heather Phillips in support of opposition to Motion to Dismiss. However, on March 6, 2026, Defendant filed a Notice of Withdrawal of Motion